

10.4.2 Flax Mill Caravan Park Boyup Brook – Short Term Stay Policy	
File Ref:	A2007
Previous Items:	Nil
Applicant:	Nil
Author and Title:	Carolyn Mallett, Executive Manager Corporate Services
Declaration of Interest:	Nil
Voting Requirements:	Simple Majority
Attachment Number:	10.4.2A CMCA Parks Guest Stay Policy 10.4.2B CMCA Parks Essential Worker Extended Stay Application

Moved: Cr. Inglis

Seconded: Cr. King

Council Decision CM 26/05/117

That Council:

- 1. Support the implementation of the Campervan & Motorhome Club of Australia Limited (CMCA) Parks Guest Stay Policy for the Flax Mill Caravan Park Boyup Brook.**
- 2. Support the implementation of the CMCA Parks Essential Worker Extended Stay Application process.**
- 3. Authorise the Chief Executive Officer, in consultation with the CMCA Manager, to assess and determine Essential Worker Extended Stay Applications on a case by case basis.**
- 4. Note the ongoing need for Council to consider broader strategies to support workforce and long-term accommodation availability within the Shire of Boyup Brook.**

CARRIED 7/0

**For: Cr. O'Connell, Cr. King, Cr. Moore, Cr. Inglis, Cr. Matthews,
Cr. Wright, Cr. Hack
Against: Nil**

Summary

This report seeks Council support of the proposed CMCA Parks Guest Stay Policy and associated Essential Worker Extended Stay Application process for the Flax Mill Caravan Park Boyup Brook.

The policy introduces formal maximum stay periods for guests to ensure the Caravan Park continues to operate primarily as a short term visitor and tourism facility, while also providing a controlled mechanism to support essential workers requiring temporary accommodation within the Shire.

The report also proposes that existing guests currently residing in the park beyond the proposed stay limits be provided with 21 days' notice to transition from the park, unless approved under the Essential Worker Extended Stay provisions.

Background

The Flax Mill Caravan Park Boyup Brook is owned by the Shire of Boyup Brook, with the Shire holding the Caravan Park licence. The facility is managed and operated by Campervan & Motorhome Club of Australia Limited (CMCA) in accordance with the *Caravan Parks and Camping Grounds Act 1995* and associated legislation.

The primary purpose of the Caravan Park is to provide short term accommodation for tourists and travellers visiting the Boyup Brook region.

In recent years, caravan parks across Australia have experienced increasing pressure to accommodate longer term occupants due to workforce shortages, housing availability challenges and rising accommodation costs. While the Caravan Park has assisted in supporting temporary workforce accommodation needs, the increasing number of extended stays has created operational and management challenges.

CMCA and the Shire have identified a need to formalise stay limits to ensure the Caravan Park continues to:

- Operate in accordance with its intended tourism and visitor accommodation purpose;
- Maintain site presentation and amenity standards;
- Support equitable access to sites for short term visitors and tourists;
- Minimise operational and compliance risks associated with long-term occupancy; and
- Support the ongoing attraction and retention of Caravan Park Custodians.

The Shire and CMCA are also awaiting the outcome of the statutory review of the *Residential Parks (Long-stay Tenants) Act 2006* currently being undertaken by the Department of Local Government, Industry Regulation and Safety. The review is assessing the effectiveness of the Act and whether legislative or regulatory amendments may be required.

Report Detail

The Flax Mill Caravan Park currently contains nineteen (19) caravan sites, including six (6) ensuite sites.

One ensuite site is allocated for use by the CMCA Custodian. It is preferable that a minimum of three (3) to four (4) ensuite sites remain available for short term tourist accommodation where possible.

The Caravan Park is not intended or approved for permanent residential occupation.

CMCA has developed a formal Guest Stay Policy for the Flax Mill Caravan Park Boyup Brook to provide clear and consistent guidance regarding permitted lengths of stay and occupancy expectations.

The policy proposes the following key provisions:

Standard Stay Limits: The maximum continuous or cumulative stay for any guest is proposed to be:

- Three (3) months (90 days) within any twelve (12) month period.

This applies to powered, unpowered and ensuite sites unless an approved exemption applies.

Ensuite Site Stay Limits: Due to the premium nature and high demand for ensuite sites, a stricter limit is proposed:

- Maximum stay of twenty-one (21) consecutive days.

Extensions beyond this period would require prior written approval from park management.

Essential Worker Extended Stay Applications:

Recognising the accommodation challenges experienced within regional communities, the policy includes provision for Essential Worker Extended Stay Applications.

Guests employed within the Boyup Brook region may apply for an extension beyond the standard three-month stay limit. Applications will be assessed on a case-by-case basis by CMCA management in consultation with the Shire Chief Executive Officer.

Applicants must provide supporting evidence including:

- Confirmation of employment;
- Evidence of a requirement to reside within the region;
- Compliance with site presentation standards; and
- Evidence that all site fees are paid and up to date.

The inclusion of this process aims to balance the operational intent of the Caravan Park with the practical accommodation needs of essential workers supporting local industries and services.

Existing Long-Term Occupants:

To implement the policy consistently, existing guests residing at the Caravan Park beyond the proposed stay limits will be provided with

twenty-one (21) days' notice to vacate the park, unless an approved Essential Worker Extended Stay Application is granted.

CMCA and the Shire acknowledge this transition may present challenges for some occupants and will encourage affected guests to make alternative accommodation arrangements as early as possible.

Operational Considerations:

CMCA has identified increasing operational difficulties associated with extended occupancy arrangements, including:

- Ongoing management of overdue accommodation payments;
- Site presentation and maintenance concerns;
- Compliance with park rules and behavioural expectations;
- Increased pressure on volunteer Custodians; and
- Reduced availability of sites for short term tourists and travellers.

CMCA has advised that these issues are impacting the overall visitor experience and may affect the future attraction and retention of Custodians at the park. The proposed policy seeks to provide greater clarity, consistency and fairness in the management of the Caravan Park moving forward.

Definitions:

- **Permanent Resident:** A person residing within the Caravan Park for residential purposes on an ongoing or indefinite basis. Permanent residency is not permitted within the Caravan Park.
- **Long-Term Stay:** A person occupying the Caravan Park for work-related or temporary accommodation purposes for a period not exceeding three (3) months within any twelve (12) month period, unless otherwise approved.
- **Tourist:** A person occupying the Caravan Park for holiday, recreational or travel purposes on a short-term basis.

Shire of Boyup Brook Strategic Community Plan 2021 - 2031

	Key Imperatives	Governance and Organisation
	Objective	Demonstrate effective leadership, advocacy and governance.
	Outcome	Provide transparent decision making that meets our legal and regulatory obligations and reflects associated risks.

Other Strategic Links

Nil

Statutory Environment

- *Local Government Act 1995 (as amended by the Local Government Amendment Act 2024)*
- *Caravan Parks and Camping Grounds Act 1995*
- *Caravan Parks and Camping Grounds Regulations 1997*
- *Residential Parks (Long-stay Tenants) Act 2006.*

Sustainability and Risk Consideration

Economic – (Impact on the Economy of the Shire and Region)

Maintaining availability for short-term visitors supports tourism activity and economic benefits to local businesses within the Boyup Brook community.

Social – (Quality of life to community and / or affected landowners)

Implementation of formal stay limits may create accommodation challenges for some longer-term occupants and workers seeking temporary accommodation within the region.

The Essential Worker Extended Stay Application process is intended to provide flexibility where appropriate.

Policy Implications

Nil

Risk Management Implications

Shire of Boyup Brook's commitment to the identification and management of risk that may impact on the achievement of its business objectives.

The proposed Guest Stay Policy establishes a formal operational framework for managing occupancy within the Caravan Park and aligns with the intended tourism and visitor accommodation purpose of the facility.

Risk Level	Comment
Low	Failure to implement consistent stay limits may negatively impact tourist availability, site presentation, compliance obligations and the reputation of the Caravan Park. Ongoing operational pressures may also affect the attraction and retention of Custodians and reduce effective oversight of the facility.

Consultation

- Manager of Business & Development, CMCA

- Chief Executive Officer
- Environmental Health Officer.

Resource Implications

Financial

No direct implementation costs are anticipated. Improved availability for short term visitors may support tourism revenue and occupancy outcomes.

Workforce

Nil

End